

HOUSE No. 2676

The Commonwealth of Massachusetts

PRESENTED BY:

James J. O'Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to enhancing child safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>1/14/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>6/13/2025</i>

HOUSE No. 2676

By Representative O'Day of West Boylston, a petition (accompanied by bill, House, No. 2676) of James J. O'Day for legislation to require landlords to install window guards in certain residential units housing children under 10 years of age. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to enhancing child safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws, as appearing in 2022 Official Edition, is
2 hereby amended by inserting after section 127P the following section:- Section 127Q. Any
3 landlord who has a tenant in a residential unit with a window higher than 6 feet off the ground
4 shall inform the tenant that the landlord shall install window guards in any such windows at no
5 additional cost to the tenant when the tenant can document the presence of children under 10
6 years of age in the unit. If any such windows are an access to fire escape routes or structures, the
7 window guard shall be removable. The tenant shall not remove the window guards for any
8 reason except emergency egress in times of a fire or other situation involving hazardous
9 materials. The obligations of a landlord to install window guards under this section shall not
10 affect the ability of a renter to lease the unit; and any discrimination by the landlord in this regard
11 shall be punishable by a fine of not less than \$250 but not more than \$500.